

SENATE BILL 965

By Hatcher

AN ACT to amend Tennessee Code Annotated, Title 6,
Chapter 51 and Title 7, Chapter 69, relative to
tourism development authorities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 7, Chapter 69, is amended by adding the following as a new section:

(a) A tourism development authority formed pursuant to this chapter owning a tract of real property, of which all or any portion thereof is contained within the incorporated territory of a municipality, may petition the municipality to deannex such property if the deannexation of the property does not create an area of unincorporated territory that is completely surrounded by municipal boundaries.

(b) The petition must include a map of the plat seeking deannexation.

(c) Upon receiving the petition for deannexation, the municipality shall determine the debt amount owed pursuant to § 6-51-204(a), if any, within thirty (30) days.

(d) The deannexation of the property becomes operative sixty (60) days after receipt of the petition by the municipality.

(e) Except for responsibility for debt newly contracted after the territory was annexed and prior to the surrender of jurisdiction, all municipal jurisdiction ceases over the territory excluded from the municipality's corporate limits on the operative date of the contraction accomplished through the petition described in this section.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.